**REPORTABLE (25)**

**ZIMBABWE REVENUE AUTHORITY**
**v**
**(1) UNKI MINES (PRIVATE) LIMITED (2) STANBIC BANK ZIMBABWE LIMITED**

**SUPREME COURT OF ZIMBABWE**
**HARARE: 23 OCTOBER 2025**

*K. Kachambwa*, for the applicant

*D. Ndawana*, for the first respondent

No appearance for the second respondent

**IN CHAMBERS**

**MWAYERA JA**:

1. This is an unopposed hybrid chamber application in terms of r 76 (2) of the Supreme Court Rules, 2025, ("the Supreme Court Rules") for condonation of failure to apply for reinstatement within time and for extension of time to do so, together with an application for condonation for failure to comply with r 44 (2) of the Supreme Court Rules, and for extension of time to do so. On 23 October 2025, I issued an *ex-tempore* judgment with the operative part reading as follows:

   "The matter be and is hereby struck off the roll with no order as to costs."

2. By letter dated 28 January 2026, the applicant requested written reasons for the judgment despite the fact that the *ex-tempore* judgment was quite elaborate, outlining the reasons why the matter which was not properly before the Court was struck off the roll. The written reasons are captioned herein.

**BACKGROUND FACTS**

3. The applicant is a body corporate duly established in terms of s 3 of the Zimbabwe Revenue Authority Act [*Chapter 23:11*]. The applicant is tasked with assessment and collection of taxes. It also collects other statutory dues and fees and enforces the payment of all revenues due to the State in terms of various revenue statutes. The first respondent is a limited liability company duly incorporated in terms of the laws of Zimbabwe. It is a multinational enterprise which is in the business of mining platinum in Zimbabwe, which it sells to its related company, Rustenburg Platinum Mines Limited, a South African Company. The second respondent is a bank registered in terms of the laws of Zimbabwe.

4. A dispute arose between the parties on 12 November 2018, after the applicant accused the first respondent of underpaying its royalties. This was after an investigation or review conducted into the operations of the first respondent during the period of 1 June 2018 to 31 December 2021. The first respondent had computed its royalties at 78% and 83% for platinum concentrate and matte, respectively, and paid for the same. The applicant advised the first respondent to re-compute its royalties at 100% of the gross fair market value of the mineral produced, which directive was disputed by the first respondent. Both parties had different interpretations of the Mines and Minerals Act [*Chapter 21:05*] on the computation of the percentage of royalties to be paid.

5. Having been told by the applicant of its liability to pay the difference due in royalties, the first respondent proposed a payment plan on a without prejudice basis, which proposal was turned down by the applicant. Nonetheless, the first respondent paid the alleged discrepancy in ZWL, which payment was acknowledged by the applicant, who insisted that the amount was due in USD.

6. The first respondent lodged an application to the Commissioner to extend the time in which to pay the royalties in terms of s 37 of the Finance Act [*Chapter 23:04*] ("the Finance Act"). Whilst waiting to meet with the Commissioner, the first respondent was advised on 19 September 2022, that a garnishee was placed upon its bankers in terms of s 58 (1) as read with s 58 (2)(e) of the Income Tax Act [*Chapter 23:06*] in satisfaction of the outstanding balance in USD.

7. The first respondent approached the High Court ("court *a quo*"), seeking a *declaratur* to the effect that the applicant's decision to impose additional royalties on it for tax years 31 December, 2018 to 31 December, 2021 be set aside. Further, the first respondent sought an order that the applicant's imposition of a garnishee on its accounts in terms of notices issued on it on 15 June 2022, be declared unlawful. The first respondent challenged the re-computation of the royalties and the demand that the discrepancy be paid in USD as opposed to ZWL.

8. The court *a quo,* in determining the matter, held that the computation provided for by the applicant was not supported by the law. It held that the first respondent was supposed to pay royalty of 85% for concentrate and 90% for matte. The court further held that garnishing the first respondent's accounts is not an enforcement method provided for at law in cases of non-payment of mining royalties and granted the application for a *declaratur*.

9. Aggrieved, the applicant noted an appeal in this Court on 15 August 2025. The applicant did not serve the registrar of the court *a quo* with the appeal, hence the appeal was deemed abandoned and dismissed for failure to comply with r 44(2) of the rules of this Court. To remedy this, the applicant promptly filed a chamber application for condonation and reinstatement of the appeal on 21 August 2025 under case number SC 659/25. This

application was set down for hearing but was subsequently struck off the roll by MAVANGIRA JA on 22 September 2025. The Court found the application to be fatally defective as it did not clearly specify the rule upon which it was founded, rendering it procedurally improper. This series of events led the applicant to file the present application.

10. Before venturing into the merits of the substantive relief sought, the Court raised, *mero motu*, the preliminary issue of whether the application was competent. Specifically, counsel for the applicant was invited to address the Court on whether it was competent to seek the reinstatement of an appeal that was a nullity. Ms *Ndawana*, counsel for the respondent, did not file any documents in opposition but just attended to note the judgment of the Court.

11. In response, Mr *Kachambwa*, counsel for the applicant, advanced a two-fold submission: Firstly, he contended that the appeal in question was not a nullity. Counsel argued that the clear language of the Supreme Court Rules provides that, where an appellant fails to serve a notice of appeal in compliance with r 44(2), as read with r 45, the consequence is that the appeal "shall be regarded as abandoned and shall be deemed to have been dismissed". This stipulated consequence, so counsel submitted, is distinct from an appeal being void *ab initio*. Counsel emphasised that r 76 of the Supreme Court Rules expressly provides a mechanism for the reinstatement of matters that have been regarded as abandoned and shall be deemed to have been dismissed in terms of any provision of these Rules. The applicant's position was therefore that the appeal, while procedurally abandoned and deemed dismissed, remained susceptible to reinstatement under r 76, and was not a nullity incapable of being salvaged.

12. Secondly, counsel submitted that a single Judge of this Court, sitting in chambers, lacks the jurisdiction to make a definitive finding that an appeal is a nullity. It was argued that such a determination, which goes to the foundational validity and existence of the appeal, is a substantive matter reserved for a full bench of the Court. In support of this proposition, counsel relied on the authorities of *Tshuma* v *Magwaza & Ors* 2020 (2) ZLR 307 (S), *Blue Ranges Estates (Pvt) Ltd* v *Muduviri and Anor* 2009 (1) ZLR 368 (S), and *Mutasa* v *The Registrar of the Supreme Court & Ors* 2018 (1) ZLR 461 (S).

13. The authorities cited by Mr *Kachambwa* are distinguishable and do not validate the applicant's quest to reinstate a non-existent appeal by operation of law. In each of the cases counsel sought to rely on, the applicants approached a single judge in chambers seeking to strike off, set aside or otherwise interfere with a pending appeal or order of the court *a quo.* The consistent principle in the authorities is that a single judge, sitting in chambers, lacks jurisdiction to determine matters that go to the heart of the Supreme Court's appellate jurisdiction. Such determinations are reserved for a full bench which, in terms of s 3 of the Supreme Court Act [*Chapter 7:13*], is constituted by not less than three judges. Considering the clear distinction on the facts of cases relied on by counsel and facts of the present case, it baffles the mind why such senior counsel was adamant he had an appeal to reinstate.

14. In the present matter, there is no pending appeal before this Court. The purported appeal was deemed abandoned and dismissed by operation of r 44 (3) due to the applicant's failure to serve the Registrar of the High Court, which is a fundamental defect that renders the appeal a nullity *ab initio.* The applicant in this case invoked r 76 (2) to reinstate what is clearly a legal nullity. The question for determination is not one of jurisdiction or competence to interfere with a pending appeal before the Supreme Court but whether a

nullity can be revived through reinstatement. This issue has been settled with consistency by the Supreme Court in many cases including *Plumed Horse (Pvt) Ltd & Ors* v *Dundurn (Pvt) Ltd & Ors* SC 153/20, *Ringsilver Enterprises (Pvt) Ltd & Ors* v *Zimbabwe Tourism Authority & Anor* 2020 (1) ZLR 1056 (S), *Yunus Ahmed* v *Docking Station Safaris (Pvt) Ltd* SC 70/18, and *Bindura Municipality* v *Mugogo* 2015 (2) ZLR 237 (S). All these cases hold that failure to serve the notice of appeal on the Registrar of the court *a quo* renders an appeal void *ab initio*, and as such a nullity which cannot be reinstated. The only competent remedy in such circumstances is an application for condonation and extension of time within which to note a proper appeal. Accordingly, the authorities relied upon by the applicant are distinguishable and do not assist the applicant. Notwithstanding the existence of the line of authorities cited above, Mr *Kachambwa* unrelentingly persisted with the argument that he had an appeal to reinstate in terms of r 76 (2). His position is in stark contrast with the settled position when viewed together with the rules of this Court he sought to rely on.

15. In the circumstances it is necessary to relate closely to the applicable law. Rule 44 (2) of the Supreme Court Rules provides as follows:

> "44. (1) Every civil appeal shall be instituted in the form of a notice of appeal in Form 13 signed by the appellant or his or her legal practitioner, which shall state—
> …
> (2) **The notice of appeal shall be filed and served on a registrar of the High Court and the respondent in accordance with r 45.**
> (3) **If the appellant does not serve the notice of appeal in compliance with subrule (2) as read with r 45, the appeal shall be regarded as abandoned and shall be deemed to have been dismissed**.
> (4) Where there are multiple records pertaining to the same judgment, the appellant and the respondent shall within ten days of the noting of the appeal notify the registrar of all the other appeals against the judgment in question, failing which the court may make an appropriate order of costs against the party concerned." (Emphasis added)

Rule 45 of the Supreme Court Rules states that:

"Time for entry of appeal
45. (1) An appellant shall institute an appeal within the following times-

(a) by filing and serving a notice of appeal in compliance with subrule (2) of r 44 within 15 days of the date of the judgment appealed against;"

Rule 76 states that:

"Reinstatement of appeals and applications generally

76. (1) Where an appeal or application is—

(a) deemed to have lapsed; or
(b) regarded as abandoned; or
(c) deemed to have been dismissed in terms of any provision of these rules: the registrar shall notify the parties accordingly.

(2) The appellant or applicant, as the case may be, may, within 15 days of receiving any notification by the registrar in terms of subrule (1), apply for the reinstatement of the appeal on good cause shown." (My emphasis)

17. The import of r 44(2) as read with r 45 (1)(a) is that filing and serving shall be effected in terms of the rules as denoted by the peremptory language. Failure to comply would produce a nullity. It follows therefore that the provisions of r 44(3) that were service is not effected in compliance with the relevant rules the appeal will be regarded as abandoned and deemed dismissed does not by any chance validate a nullity. It is a settled principle of statutory interpretation that provisions should not be construed in a manner that renders them redundant and nugatory. If an appeal has not been filed and served it is regarded in terms of r 44 (3) as abandoned and dismissed. Failure to serve induces still birth to the process and such a nullity cannot be resuscitated by resort to r 76 (2) for reinstatement, for the obvious reason that there is nothing to resuscitate. The parties have to seek condonation for late filing of an appeal and extension of time to regularly file an appeal out of time. Rule 76(2) is an available avenue for regular and properly filed and served valid appeals regarded as abandoned and deemed dismissed for one reason or the other. Common examples being but not limited to, regular proper, and valid appeals

afflicted by failure to pay security for costs within the stipulated *dies induciae* in terms of the rules. Rule 76 when given the ordinary grammatical meaning is clear that what is to be resuscitated is an appeal validly filed and served in the first instance. The deduction that can be made from a reading of the relevant rules is that what falls for reinstatement is an appeal and not a nullity.

**APPLICATION OF THE LAW TO THE FACTS**

18. In *Plumed Horse (Pvt) Ltd & Ors* v *Dundurn (Pvt) Ltd & Ors*, *supra* on pp 4-5 MATHONSI JA succinctly made the following pertinent remarks:

> "I do not agree. In fact I agree with Mr *Nkomo* for the respondent that, where an appeal has not been properly instituted, there cannot be any appeal to reinstate. In those circumstances the proper approach would be to seek condonation and extension of time within which to note a proper appeal.
>
> In terms of r 37 (1) every civil appeal shall be instituted in the form of a notice of appeal which complies with the requirements set out therein. Subrule (2) requires the notice of appeal to be served on the Registrar as well as the respondents. Therefore for a valid appeal to exist there must be compliance with the requirement for service of the notice aforesaid. Anything short of that is fatal to the appeal to such an extent that there would be no appeal.
>
> The position of this Court has always been that a notice of appeal is only a valid one if it complies with both r 37 and r 38. These rules are an integral part of the process of noting an appeal. When the notice fails to comply with the rules in the process of noting it, that appeal is said to be defective. A defective appeal is a nullity and where something is a nullity it is taken as though nothing is before the court."

19. The Court proceeded to make the following apposite pronouncements:

> "To the extent that it has been suggested on behalf of the applicants that this jurisprudence has been altered by the introduction of r 70 (3) of the current Supreme Court Rules, 2018, I respectfully disagree. Rule 70 (3) should be understood in proper context. It applies to valid appeals as opposed to defective ones.
>
> Indeed, this Court has already pronounced itself on the effect of the current rules in the case of *Ringsilver Enterprises (Pvt) Ltd & Ors* v *Zimbabwe Tourism Authority & Anor* SC 64/20. It is a judgment which was decided in terms of the current rules. Commenting on the application of r 37 (2) the court said:
>
> > 'The applicant's omission to serve the High Court Registrar with the notice of appeal rendered the appeal void *ab initio*.'

> The legal position that if a notice of appeal has not been served on the respondents as provided for in the rules, it is defective has not been changed by the current rules. It is a point which should have been conceded by the applicants. For Mr *Zhuwarara* to insist that an appeal dead in the water was capable of revival by an application for reinstatement was not helpful."

20. It is common cause that r 70 of the 2018 Supreme Court Rules was repealed and replaced by r 76 of the Supreme Court Rules, 2025 without alteration of the content. The pronouncement by this Court on r 70 in the *Plumed Horse* case *supra* apply with equal force to r 76. Rule 76 (2) **only applies when the appeal that has been deemed abandoned and dismissed is valid**. In view of the cited authority, when an applicant fails to serve the Registrar of the court *a quo* or the respondents with the notice of appeal, there is no valid appeal and, as such, the purported notice of appeal is void *ab initio* or *nullum et est ab initio*. As such, it is a nullity, which cannot be cured. Such a notice of appeal cannot be reinstated for a nullity cannot be reinstated. (My emphasis)

21. In *Yunus Ahmed* v *Docking Station Safaris (Pvt) Ltd* t/a *Cc Sales supra*, this Court again clearly pronounced itself on the fate of an invalid notice of appeal when it stated the following:

> "In *Econet Wireless (Pvt) Ltd* v *Trustco Mobile (Proprietary) Ltd & Anor* SC 43/13, GARWE JA stated as follows:
>
> > 'The position is now well established that a Notice of Appeal must comply with the mandatory provisions of the Rules and that if it does not, it is a nullity and cannot be condoned or amended. See *Jensen* v *Acavalos* 1993 (1) ZLR 216 (S).'
>
> The Notice of Appeal that the applicant seeks of reinstatement is therefore a nullity. A nullity cannot be reinstated, it is dead at law and hence it cannot be resuscitated by means of an application for reinstatement of an appeal. This point was clearly made in *Bindura Municipality* v *Mugogo* SC 32/15 where GUVAVA JA stated that:
>
> > 'It however seems to me that the applicant has filed a wrong application. Where a matter has been struck off the roll because it has failed to comply with the rules of court, one cannot simply apply for reinstatement of the appeal as such an appeal is a nullity. This position has been stated in a number of decisions of this Court.'

> In view of the above, it is clear that the applicant has approached this Court with a wrong application. The circumstances of this case require the applicant to make an application for condonation for non-compliance with the rules and extension of time within which to file and serve a Notice of Appeal. This, the applicant failed to do. The net effect of bringing a wrong application before the court is that there will be virtually nothing placed before it, and, to that end, this application cannot stand."

22. It is worth noting that these cases and the principles emanating from them were brought to the attention of Mr *Kachambwa* as a way of having him align the facts of the present case to the legal realities and assist the applicant accordingly. Counsel was however, adamant and persisted in his erroneous view that the application was properly before the Court, in total disdain of the rules of this Court and precedent.

23. Based on the admitted failure to serve the notice of appeal on the High Court registrar, a peremptory requirement for lodging a valid appeal, the purported appeal being a nullity cannot be reinstated.

24. In the present matter, there was no compliance with the mandatory requirement of filing and serving the notice of appeal in terms of r 44(2) and 45 (1)(a). Service on the registrar of the court *a quo* is not a mere procedural formality but a jurisdictional step in the institution of an appeal. Absent such service within the prescribed period, the appeal was never properly noted and therefore never came into existence in law. What purports to be an appeal is, in effect, a nullity. In those circumstances, there is nothing capable of being resuscitated and or amended, and consequently nothing capable of reinstatement under r 76. The only competent course would have been to seek condonation and extension of time within which to properly institute the appeal.

**DISPOSITION**

25. The failure by the applicant to serve the notice of appeal on the registrar of the High Court, as peremptorily required by r 44(2) of the Supreme Court Rules, is not a mere procedural lapse but goes to the root of the appeal itself. Service of the notice of appeal is an integral component of the institution of an appeal. In the absence of such service, no valid appeal came into existence. The purported notice of appeal was therefore void *ab initio*, with the result that there is, in law, no appeal before this Court capable of being reinstated under r 76 of the Rules.

26. The application before the Court is consequently founded on a wrong procedure and the relief sought is not legally competent. As has been consistently held by this Court, a nullity cannot be revived, reinstated, condoned or amended. The inevitable conclusion is that the purported application placed before the Court was not properly before it. This point is dispositive of the matter.

27. Regarding costs since the respondents did not file opposing documents there shall be no order as to costs.

28. Accordingly, for the foregoing reasons, the matter was struck off the roll with no order as to costs.

*Zimbabwe Revenue Authority Legal Service*, applicant's legal practitioners

*Gill Godlonton & Gerrans*, 1st respondent's legal practitioners